

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
SHAQUAN SETH,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
ROBINSON MARTINEZ (Shield # 7586) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
unidentified members of the New York City Police
Department,

Defendants.

SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Bronx County as
the place of trial

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 13, 2021

Respectfully submitted,

/s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE ROBINSON MARTINEZ (SHIELD # 7586), 49th Precinct Detective Squad,
Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
SHAQUAN SETH,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NYPD DETECTIVE
ROBINSON MARTINEZ (Shield # 7586) and NYPD
OFFICERS JANE and JOHN DOE #'s 1-8 (Names and
Numbers are unknown at present) and other
unidentified members of the New York City Police
Department,

Defendants.

-----X
Plaintiff **Shaquan Seth**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendant unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff. In addition, plaintiff was subjected to conversion of chattels. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Shaquan Seth is a citizen of the United States and a resident of New York.

3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described therein.
4. NYPD OFFICER ROBINSON MARTINEZ assigned Shield # 7586 was and is at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. POLICE OFFICERS ROBINSON MARTINEZ (Shield # 7586) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-8 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on August 11, 2020.

STATEMENT OF FACTS

15. On or about August 16, 2017, at approximately 6:00 pm, in the vicinity of White Plains Road between Pelham Parkway and Bronx Park East, in Bronx, New York, Plaintiff Seth was leaving a store when several police officers from the 47th and/or 49th precinct, including upon information and belief, NYPD DETECTIVE ROBINSON MARTINEZ (SHIELD # 7586) and NYPD OFFICER JOHN and JANE DOE #'s 1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Seth.
16. On that date, defendant MARTINEZ and/or JOHN and JANE DOE approached defendant and asked "how are you doing Mr. Seth?" Defendants then placed Plaintiff Seth under arrest, informing him someone had alleged he had committed assault and robbery.
17. Defendants had no reason to approach Plaintiff Seth because he was not engaged in any criminal activity and had not been observed engaging in any criminal or unlawful behavior. Although an

individual named Antonio Medina had claimed Plaintiff Seth assaulted and robbed him, these allegations were patently false. In fact, Defendants MARTINEZ and/or JOHN and JANE DOE told Plaintiff Seth on the ride to the precinct that they did not believe he had committed any crime based on their past interactions with Mr. Medina.

18. Moreover, objective and credible witnesses at the scene of a prior altercation between Plaintiff Seth and Mr. Medina verified that Plaintiff had done nothing wrong and that, in fact, Mr. Medina had stolen items from Plaintiff Seth and made these false allegations in the hopes he could avoid the criminal consequences for stealing items from Plaintiff. Plaintiff Seth informed defendant officers MARTINEZ and/or John and Jane DOE about these witnesses, but he was nonetheless arrested and charged with various serious crimes. One witness, a caseworker named Charles Ward, provided a statement to defendants MARTINEZ and/or JOHN and JANE DOE exonerating Plaintiff Seth, but, upon information and belief, this information was ignored and not provided to the District Attorney.
19. Additionally, upon information and belief, defendants MARTINEZ and/or JOHN and JANE DOE failed to view or retain readily available video surveillance exonerating Plaintiff Seth of any criminal activity toward Mr. Medina.
20. Finally, Defendants MARTINEZ and/or JANE and JOHN DOE failed to properly question Mr. Medina or investigate his claims. Mr. Medina later provided an affidavit exonerating Plaintiff Seth of any criminal activity, and admitted to filing a false report to avoid an arrest for his own criminal behavior.
21. Once defendants MARTINEZ and/or JANE and JOHN DOE # 1-8 approached Plaintiff Seth, he was not free to leave.
22. While Plaintiff was incarcerated at the precinct and Central Booking, defendants MARTINEZ and/or JANE and JOHN DOE # 1-8 falsely and maliciously told the Bronx County District

Attorney's Office that plaintiff had committed the crime of Robbery in the 2nd degree, Robbery in the 3rd degree, Assault in the 3rd degree, Petit Larceny, Criminal Possession of Stolen Property, Menacing, and Harassment. Defendants failed to interview any witnesses of the alleged interaction between Plaintiff Seth and Mr. Medina and failed to inform the District Attorney of the existence of his exculpatory evidence.

23. Based on defendant's false statements, the Bronx County District Attorney's office chose to prosecute Plaintiff Seth under docket 2017BX032625.
24. Plaintiff Seth was incarcerated for approximately one year. During his time in custody, he was subjected to depraved, filthy and inhumane conditions. Plaintiff lost his housing and belongings. He suffered extreme anxiety and stress as a result of his arrest and subsequent incarceration.
25. All charges against Plaintiff were dismissed and sealed on December 18, 2019.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

26. Plaintiff repeats and alleges paragraphs 1 through 25 as if fully set forth herein.
27. The acts and conduct of the defendants MARTINEZ or JANE and JOHN DOE # 1-8 constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
28. The individually named defendants MARTINEZ or JANE and JOHN DOE # 1-8 were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

29. As a result of the foregoing, Plaintiff's liberties were restricted for approximately one year. Additionally, he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.
30. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.
32. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
33. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, providing false allegations to the District Attorney that he had committed an assault and robbery that they knew had not occurred based on information readily available from objective witnesses and the unreliability of the complaining witness. They also failed to obtain readily-available video surveillance exonerating Plaintiff Seth. They withheld this witness information exonerating Plaintiff from the District Attorney. As a result, Plaintiff suffered a serious deprivation of liberty. Plaintiff obtained a favorable termination on the fabricated charges.
34. Defendants commenced and continued a criminal proceeding against plaintiff.
35. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
36. The prosecution and criminal proceedings terminated favorably to plaintiff on December 18, 2019.

37. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights, including, but not limited to, approximately one year of incarceration.
38. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, MARTINEZ, and JANE and/or JOHN DOE # 1-8, individuals who were unfit for the performance of NYPD duties.
41. The aforementioned acts of negligent hire, retention, training, and supervision by the City of New York and the New York City Police Department include, but are not limited to failing to take reasonable control/and or discipline officers who lie, fabricate evidence, engage in illegal acts toward other police officers or civilians, and/or commit perjury to cover up police misconduct and/or inflate arrest statistics.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
44. Defendants MARTINEZ and JANE and JOHN DOE # 1-8 failed to intervene to prevent the arrest of Plaintiff without probable cause, knowing the allegations against him were false. Defendants had a reasonable opportunity to intervene and possessed full knowledge of the unlawful conduct as they were present for it.
45. As a result of the foregoing, plaintiff was subjected to an illegal search, false arrest, and significant anxiety over the course of the false arrest.
46. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
47. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
49. All of the aforementioned acts of defendants MARTINEZ and NYPD OFFICERS JOHN and JANE DOE" #1-8, their agents, servants, and employees, were carried out under the color of state law.
50. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
52. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
53. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
55. As a result of the aforesaid conduct by defendant MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-8, plaintiff was subjected to an illegal, improper, and false arrest by the defendants MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-8, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
56. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for her safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
58. Defendants MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-8 created false evidence against the plaintiff, alleging that he committed robbery and assault, among other crimes, when they had objective and credible evidence that no crime occurred, including testimony from witnesses and readily-available video surveillance.
59. Defendants MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-8 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that Plaintiff had committed robbery and assault, when, in fact, they knew the complaining witness was unreliable, and, upon information and belief, that statements from credible witnesses and video surveillance exonerated Plaintiff.
60. Defendants MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-8 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
61. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-8 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
62. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
64. Defendants MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.
65. Defendants MARTINEZ and POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.
66. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
68. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 misrepresented and falsified evidence before the Bronx County District Attorney, including false allegations that they had a reasonable suspicion to believe that Plaintiff Seth had robbed or assaulted Mr. Medina. Defendants had reliable and credible evidence exonerating Plaintiff of any wrongdoing, including statements from a witness present at the scene and video surveillance.

69. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 did not make a complete and full statement of facts to the District Attorney and withheld information provided by Plaintiff Seth regarding witness testimony and video surveillance.
70. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 withheld exculpatory evidence from the District Attorney.
71. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
72. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 lacked probable cause to initiate criminal proceedings against plaintiff.
73. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 acted with malice in initiating criminal proceedings against plaintiff.
74. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
75. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 lacked probable cause to continue criminal proceedings against plaintiff.
76. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN or JANE DOE” #1-8 acted with malice in continuing criminal proceedings against plaintiff.
77. Defendants MARTINEZ and/or POLICE OFFICERS “JOHN DOE” #1-8 misrepresented and falsified evidence throughout all phases of the criminal proceedings. Plaintiff was only released from custody after his own defense counsel provided exonerating information to the District Attorney’s Office.

78. Specifically, defendants' MARTINEZ and/or POLICE OFFICERS "JOHN DOE" #1-8 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff's arrest.
79. Notwithstanding the perjurious and fraudulent conduct of defendants MARTINEZ and/or POLICE OFFICERS "JOHN DOE" #1-8, the criminal proceedings were terminated in plaintiff's favor on or about November 21, 2019.
80. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
82. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
83. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,

- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
84. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.
85. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
86. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
87. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

88. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
89. The acts complained of deprived the plaintiff of his right:
- G. Not to be deprived of liberty without due process of law;
 - H. To be free from seizure and arrest not based upon probable cause;
 - I. Not to have summary punishment imposed upon them; and
 - J. To receive equal protection under the law.

WHEREFORE, SHAQUAN SETH, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
May 13, 2021

Respectfully submitted:

By: *Sydney Ohagan*
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TO:

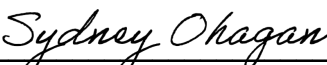
CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007
NYPD OFFICER MICHAEL MARTINEZ (SHIELD # 7586), 49th Precinct Detective Squad, Bronx,
New York

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
May 13, 2021



Sydney O'Hagan, Esq.